out the shortcomings of the methodology used by the European Commission in drafting the Rule of Law reports, based almost exclusively on media reports and interviews with the NGOs, most of which were overwhelmingly and openly hostile to Janša's government.

After a long political and legal wrangling at the EU level, in 2022 Poland finally gave up, at least partially, and promised to roll back some of the most controversial steps (e.g. the establishment of a disciplinary chamber for judges) in order to avail itself of EU post-pandemic recovery funds. Something similar was being arranged in Hungary at the time of writing of this book. At the centre of Brussels' demands are procurement transparency in the Hungarian case and reversal of reforms that were seen as political disciplining of judges in the case of Poland.[180]

The principle of the Rule of Law has indeed became a key concern and the central theme of EU debate when it comes to Poland and Hungary and the rest of Central Europe. There seem to be real problems in those two countries: 'Instead of enriching Western liberal constitutional values with their post-communist experience, these states have rather started a new populist movement in the form of constitutional backsliding whose final objective is the creation of an illiberal state.'[181] The two authors of this statement are also critical of the European Commission and Western EU countries for ignoring for too long the 'constitutional backsliding', especially of Orbán's 'constitutional capture of the state' and of the 'democratic crisis' in Poland. Entering the EU was hardly enough: 'The biggest progress, indeed a breakthrough, under the influence of EU law was thus engendered at the pre-accession stage. Later on, with the celebratory mood setting in, pervaded by a growing complacency of being the best pupil in the class, these formal legal benchmarks started losing their influence. The discrepancy between formal requirements and actual practice started to grow, but EU membership has continued to force the stakeholders in Slovenia to stick to their practice of organised hypocrisy.'[182]

Like Sadurski, Avbelj and Letnar Černič offer a devastating criticism of illiberal democracy in Poland (and Hungary), but they also point to the lesser known – and quite specific – case of Slovenia. As said earlier, the two are critical of European politicians and academics for 'a notable lack of in-depth research focusing on democracy and the rule of law in Central and Eastern Europe'[183] though 'the elusiveness of the meaning, or rather